

25VECV02595 25VECV02595

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-06

Motion: DEFENDANT'S MOTION FOR JUDGMENT ON THE PLEADINGS

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Case Number: 25VECV02595 Hearing Date: July 6, 2026 Dept: U

SUPERIOR COURT OF
THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST
DISTRICT

PARANDZEM KOSHKARYAN, an individual; and JERIAR
KOSHKARYAN, an individual,

Plaintiffs,

vs.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 25VECV02595

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
FOR JUDGMENT ON THE PLEADINGS

Dept. U

8:30 a.m.

July 6, 2026

I.

BACKGROUND

This case is a lemon law action filed by Plaintiffs Parandzem
Koshkaryan and Jeriar Koshkaryan
against Defendant General Motors, LLC.

On May 9, 2025, Plaintiffs filed their
original complaint against Defendant, alleging: (1) violation of Civil Code
section 1793.2 (d); (2) violation of Civil Code section 1793.2 (b); (3)
violation of Civil Code section 1793.2 (a)(3); (4) breach of the implied
warranty of merchantability; and (5) fraudulent inducement – concealment.

On October 23, 2025, Plaintiffs filed their
first amended complaint (the "FAC"), alleging: (1) violation of Civil Code

section 1793.2 (d); (2) violation of Civil Code section 1793.2 (b); (3) violation of Civil Code section 1793.2 (a)(3); (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On November 24, 2025, Defendant filed its answer to the FAC.

On April 3, 2026, Defendant filed its motion for judgment on the pleadings as to the breach of the implied warranty of merchantability; and fraudulent inducement – concealment causes of action.

On June 22, 2026, Plaintiffs filed their opposition brief.

On June 26, 2026, Defendant filed its reply brief.

II.

LEGAL STANDARD

A motion for judgment on the pleadings is the functional equivalent of a demurrer for sufficiency, and the trial court's analysis should be similar. *Kapsimallis v. Allstate Ins. Co.* (2002) 104 Cal.App.4th 667, 672. "All properly pleaded, material facts are deemed true, but not contentions, deductions, or conclusions of fact or law; judicially noticeable matters may be considered." *Ibid.* There exist separate statutory and common law authorities for obtaining judgments on the pleadings. In contemporary practice, the procedures are interchangeable. *Korchemny v. Piterman* (2021) 68 Cal.App.5th 1032, 1055.

III.

DISCUSSION

a.

Review of Allegations in the FAC

Plaintiffs plead that on February 18, 2021, they purchased a 2020 Cadillac CT4 (the

“Vehicle”) accompanied by a warranty. Plaintiffs plead defects and nonconformities to the warranty manifested within the applicable express warranty period, including transmission, engine, and electrical defects. Plaintiffs plead Defendant failed to replace the Vehicle or make prompt restitution in accordance with its obligations under the Song-Beverly Act. (FAC, ¶¶ 6-24.)

Plaintiffs

plead Defendant “concealed and failed to disclose the defective nature of the Vehicle [and] its 8-speed transmission to Plaintiffs prior to and at the time of sale.” Plaintiffs plead they delivered the Vehicle to Defendant’s authorized repair facility for repairs on February 24, 2025. Plaintiffs plead Defendant knew or should have known about the Vehicle’s defects. Plaintiffs plead Defendant “actively concealed the Engine Defect and failed to disclose this defect to Plaintiff[s] at the time of purchase of the Subject Vehicle or thereafter.” (FAC, ¶¶ 11, 77, 80.)

Plaintiffs

plead, “To the extent there are any statutes of limitation applicable to Plaintiffs’ claims—including, without limitation, the express warranty and implied warranty—the running of the limitation periods have been tolled by, inter alia, the following doctrines or rules: equitable tolling, the discovery rule, equitable estoppel, the repair rule, and/or class action tolling (e.g., the American Pipe rule).” Plaintiffs plead that they “discovered Defendant’s wrongful conduct alleged herein shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following [Defendant’s] unsuccessful attempts to repair them.” (FAC, ¶¶ 30-31.)

b.

Plaintiffs’

breach of implied warranty claim is time-barred.

Defendant moves for judgment on

the pleadings as to Plaintiffs’ fourth cause of action for breach of the implied warranty of merchantability in violation of Civil Code sections 1791.1, 1794, and 1795.5.

Implied warranty claims are

subject to a four-year statute of limitations. Comm. Code, § 2725. As to implied warranty claims, the limitations period generally begins running upon the delivery of the merchandise, not upon discovery of the defect. See *Nguyen v. Nissan N. Am., Inc.* (N.D.Cal. 2020) 487 F. Supp. 3d 845, 854, fn. 3 (“delayed discovery doctrine does not apply to implied warranty claims”).

Plaintiffs

allege they purchased the Vehicle on February 18, 2021. Thus, Plaintiffs had until February 18, 2025, to file their breach of implied warranty claim. Plaintiffs did not file their original complaint until May 9, 2025, more than four (4) years later. Plaintiffs’ breach of implied warranty claim is plainly time-barred.

Plaintiffs argue their implied warranty claim is rescued by the delayed discovery rule under the case *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 (*Mexia*). The *Mexia* Court held, “A breach of [implied] warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” *Mexia*, at p. 1306, quoting Cal. U. Com. Code, § 2725 (1).

Here, the warranty does not explicitly extend to the Vehicle’s future performance such that discovery needed to await the time of performance. Rather, the Vehicle was warranted to be in fit condition as of the date of its sale. Thus, the *Mexia* rule does not extend Plaintiffs’ filing deadline, as this is not an instance where the warranty was expressly for the Vehicle’s future performance. See *Mexia*, *supra*, 174 Cal.App.4th at p. 1306.

Plaintiffs’ fourth cause of action for breach of the implied warranty of merchantability is time-barred. Further amendment would be futile as to this cause

of action because the date on which Plaintiffs purchased the Vehicle is not a fact that can reasonably be amended. The motion will be granted, without leave to amend, as to Plaintiffs' fourth cause of action for breach of the implied warranty of merchantability in violation of Civil Code sections 1791.1, 1794, and 1795.5.

c. Plaintiffs' fifth cause of action for fraudulent inducement-concealment alleges no direct transactional relationship between themselves and Defendant.¿

Defendant also moves for judgment on the pleadings as to Plaintiffs' fifth cause of action for fraudulent inducement-concealment on grounds that the statute of limitations has already run and that Plaintiffs allege no direct transactional relationship between themselves and Defendant.

As to Defendant's statute of limitations argument, the Court disagrees that the FAC plainly shows Plaintiffs' claim is time barred. The statute of limitations for alleging fraud is three (3) years. See Code Civ. Proc., § 338. Here, Plaintiffs allege they first presented the Vehicle to address the concealed defect on February 24, 2025. Plaintiffs filed their complaint on May 9, 2025, less than three (3) months later. Plaintiffs' claim is not clearly time-barred.

As to the sufficiency of Plaintiffs' fraud claim and Defendant's argument regarding a direct transactional relationship, the necessary elements for fraudulent concealment are that: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted in the same way had she known of the concealed fact; (5) the concealment caused the alleged harm; and (6) the plaintiff sustained damages.¿ *Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.¿ See also *City of Pomona v. Superior Court* (2001) 89 Cal.App.4th 793, 803 (Pomona) (any action sounding in fraud must be pleaded with particularity).¿

"[A] duty to disclose may

arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement.”² *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337.³ “[A] duty to disclose arises in this context only where there is already a sufficient relationship or transaction between the parties.”⁴ *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 312 (*Bigler-Engler*) (no duty to disclose where no transactional relationship existed between parties).⁵

Plaintiffs allege no facts

to establish any direct transactional relationship between Plaintiffs and Defendant at the time of the alleged non-disclosure re: the Vehicle's defects.⁶ Plaintiffs do not allege that they purchased the Vehicle from Defendant.⁷ Rather, Plaintiffs' allegations indicate they purchased the Vehicle through a dealership.⁸ (See FAC, ¶ 8.)⁹ If, as appears to be the case, a dealership rather than Defendant is the entity with which Plaintiffs transacted, Plaintiffs cannot proceed with a concealment claim against Defendant absent some allegation of a direct relationship which imposed on Defendant some duty to disclose.¹⁰ See *Bigler-Engler*, supra, 7 Cal.App.5th at p. 312.

Plaintiffs

argue the Court should find otherwise under the case *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 (*Dhital*).¹¹ In *Dhital*, the First District Court of Appeal determined the economic loss rule does not bar a buyer-plaintiff's claim for fraudulent concealment against a manufacturer-defendant (*Nissan*).¹² *Dhital*, at p. 843.¹³ The *Dhital* Court also examined the manufacturer-defendant's sufficiency argument as an alternative ground for seeking affirmance of the trial court's order sustaining its demurrer to the buyer-plaintiff's fraudulent inducement claim.¹⁴ *Ibid.*¹⁵ Specifically, the *Dhital* Court examined the following pleading allegations:¹⁶

“Plaintiffs alleged the above elements of fraud in the SAC.

As we have discussed, plaintiffs alleged the CVT transmissions installed in numerous Nissan vehicles (including the one plaintiffs purchased) were defective; Nissan knew of the defects and the hazards they posed; Nissan had exclusive knowledge of the defects but intentionally concealed and failed to disclose that information; Nissan intended to deceive plaintiffs by

concealing known transmission problems; plaintiffs would not have purchased the car if they had known of the defects; and plaintiffs suffered damages in the form of money paid to purchase the car.”² Dhital, at p. 844.³

The Dhital court held, “At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient” to support a claim for fraudulent inducement.⁴ Dhital, supra, 84 Cal.App.5th at p. 844.⁵ “In light of these allegations, we decline to hold plaintiffs’ claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.”⁶ Id. at p. 844.

This Court disagrees with the position that Dhital represents binding precedent that a basic lemon law warranty dispute is necessarily sufficient to support a claim for fraudulent concealment where there was no direct transactional relationship between the buyer and manufacturer. While the Dhital Court held the buyer-plaintiff’s allegations were sufficient in that case, the Dhital Court indicated that its decision on this question was at least in part due to “the absence of a more developed argument by Nissan on this point.” Dhital, supra, 84 Cal.App.5th at 844.

This case is distinguishable from Dhital because Defendant presents a thoroughly developed argument for why Plaintiffs should not be allowed to allege fraudulent concealment when there is no direct transactional relationship between Plaintiffs and Defendant. Defendant persuasively argues that holding otherwise would essentially eliminate the Bigler-Engler requirement that a plaintiff allege a direct transactional relationship to prevail on a concealment claim. Merely alleging the Vehicle was delivered to Plaintiffs with defects and nonconformities to warranty is insufficient to show that Plaintiffs and Defendant ever entered a transactional relationship that gave rise to Defendant’s duty to disclose any defect to Plaintiffs.

This determination is in keeping with the recent holding in Bjoin v. J-M Manufacturing Co., Inc. (2025) 113 Cal.App.5th 884 (Bjoin), as well as other Supreme Court authority issued shortly before Dhital.⁷

See *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 (Rattagan).² In *Rattagan*, the Supreme Court held that a transaction giving rise to a fraudulent concealment claim “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.”³ *Rattagan*, at p. 41, quoting *Bigler-Engler*, supra, 7 Cal.App.5th at p. 312.

This Court agrees with the reasoning laid out in *Bjoin*, *Rattagan*, and *Bigler-Engler*.⁴ SBA plaintiffs need to allege a direct transactional relationship between themselves and the defendant to support a claim for fraudulent concealment.⁵ Nothing in *Dhital* directly overrules *Bigler-Engler* or modifies the requirements set forth under *Rattagan*.

Any action sounding in fraud must be pleaded with particularity.⁶ See *Pomona*, supra, 89 Cal.App.4th at 803.⁷ If a transactional relationship between Plaintiffs and Defendant exists, Plaintiffs must specifically plead the existence and nature of that relationship in a further amended complaint.⁸ Absent particularized allegations showing some relationship giving rise to Defendant's duty to disclose, Plaintiffs have no cause of action for concealment against Defendant.⁹ See *Bigler-Engler*, supra, 7 Cal.App.5th at 312.

The motion will be granted, with leave to amend, as to Plaintiffs' fifth cause of action for fraudulent inducement – concealment. In any further amended complaint, Plaintiffs will be required to include particularized allegations showing some direct transactional relationship giving rise to Defendant's duty to disclose to Plaintiffs. Absent such allegations of a direct transactional relationship, the Court intends to summarily sustain/grant a future demurrer or motion for judgment on the pleadings as to such a cause of action in a further amended complaint, without leave to amend.

IV.

CONCLUSION

Defendant General Motors, LLC's motion

for judgment on the pleadings is GRANTED, without leave to amend, as to Plaintiffs' fourth cause of action for breach of the implied warranty of merchantability in the First Amended Complaint.

Defendant General Motors, LLC's motion for judgment on the pleadings is GRANTED, with leave to amend, as to Plaintiffs' fifth cause of action for fraudulent inducement – concealment in the First Amended Complaint.

Plaintiffs are ORDERED to file their First Amended Complaint within ten (10) days. Alternatively, this case will proceed without a claim for fraudulent inducement – concealment.

Defendant General Motors, LLC is ORDERED to give notice.

DATED: July 6, 2026

Lee Arian

Judge of the Superior Court